

Competition Case Research Assistant

ASSISTANT

Hello! I'm your Competition Research Assistant. How can I help you today?

YOU

get me some monopolization cases across the US

ASSISTANT

Here are relevant cases worth your time based on your search query.

Memorandum Opinion: U.S. and Plaintiff States v. Google ...

Case Background

- The allegation made in this case is that Google engaged in a series of anticompetitive acts to acquire and maintain its monopoly power in the advertising technology market. (Page 86)
- The company being accused is Google. (Page 86)
- The case was initiated in the year 2023. (Page 3)
- The violations include monopolization of the publisher ad server market, monopolization or attempted monopolization of the ad exchange market, and unlawful tying of products in violation of Sections 1 and 2 of the Sherman Act. Google allegedly established a dominant position by acquiring companies like DoubleClick and Admeld, tied its DFP product to AdX to lock publishers into using its tools, and engaged in practices that diminished competitors' ability to compete. These actions were characterized as exclusionary and anticompetitive, ultimately harming consumers and the competitive process. (Pages 2, 86, 112)

Case Progression

- **Initiation of Civil Action:** The case was initiated by the United States against Google under Section 4 of the Sherman Act and Section 16 of the Clayton Act, alleging monopolization in various ad tech markets (page 2, paragraph 1). The burden of proof lies with the plaintiffs to demonstrate Google's anticompetitive conduct.
- **Filing of Complaint:** The plaintiffs filed a detailed complaint outlining multiple counts against Google, including monopolization and unlawful tying (page 2, paragraph 1). The district judge will oversee the proceedings, and the legal test applied will involve assessing whether Google's conduct harmed competition.
- **Denial of Motion to Dismiss:** Google's motion to dismiss the case was denied by the district judge, allowing the case to proceed to discovery (page 3, paragraph 1). The judge applied the Twombly plausibility standard, determining that the plaintiffs had sufficiently alleged claims to move forward.
- **Discovery Phase:** Extensive fact and expert discovery occurred from March 27, 2023, to March 15, 2024, involving testimonies and exhibits (page 3, paragraph 1). The burden was on both parties to gather evidence supporting their claims and defenses.
- **Bench Trial:** A bench trial was held, where the district judge evaluated the evidence presented, including testimonies from numerous witnesses (page 3, paragraph 1). The judge's findings of fact and conclusions of law will determine whether Google engaged in anticompetitive conduct.

- **Post-Trial Findings:** The court concluded that Google engaged in willful acquisition or maintenance of monopoly power through tying and exclusionary practices (page 112, paragraph 1). The judge applied the Grinnell two-part test to assess the anticompetitive effects versus any procompetitive justifications presented by Google.

Market Definition

- The relevant market in this case includes two distinct product markets: one for publisher ad servers for open-web display advertising and another for ad exchanges for open-web display advertising. (Page 70)
- The process to define the market starts with a preliminary inquiry into market definition, which is essential for determining the defendant's market power. (Page 42)
- The definition of the relevant market is based on the "area of effective competition," which considers where significant substitution in consumption or production occurs. (Page 42)
- Geographic market considerations involve evaluating where customers can realistically turn to alternative suppliers if prices were to increase, taking into account commercial realities such as marketing areas and regulatory requirements. (Page 67)
- The plaintiffs argue for a worldwide market definition, citing that Google's conduct affects customers globally, while Google contends that only the U.S. market should be considered. (Page 68)
- The court acknowledges the global nature of digital advertising, emphasizing that publisher ad servers and ad exchanges are marketed globally and are not limited by high shipping costs or perishability. (Page 70)
- Techniques used in defining the market include analyzing expert testimonies, considering regulatory and cultural differences, and assessing the competitive dynamics of the ad tech ecosystem as a whole. (Page 68)

Legal & Economic Tests

- **Market Definition Test:** This test involves defining the relevant market to assess the defendant's market power. It focuses on identifying the area of effective competition, which is the arena where significant substitution in consumption or production occurs. In this case, the court begins with a preliminary inquiry into market definition to determine the scope of competition and the ability of the defendant to lessen or destroy competition. This is crucial for measuring monopoly power. (Page 42)
- **Anticompetitive Conduct Assessment:** This test evaluates whether the defendant's conduct has harmed competition and consumers. It considers the overall impact of the alleged anticompetitive actions rather than categorizing them into subcategories. The court looks at the holistic effect of the conduct on the competitive process and whether it has impaired competition in an unnecessarily restrictive way. This assessment is essential for determining if the conduct violates Section 2 of the Sherman Act. (Page 86)

- **Willful Acquisition or Maintenance of Monopoly Power:** For liability under Section 2 of the Sherman Act, this test requires proving that the defendant engaged in the willful acquisition or maintenance of monopoly power through anticompetitive conduct. The court examines whether the conduct is procompetitive or if it results from valid business reasons. The presence of monopoly power alone is not unlawful unless accompanied by anticompetitive conduct that harms competition and consumers. (Page 85)

Conclusion

- The court found Google liable for engaging in a series of anticompetitive acts that allowed it to acquire and maintain monopoly power in the publisher ad server and ad exchange markets, violating Sections 1 and 2 of the Sherman Act (Page 114).
- The court concluded that Google's practices, including tying its publisher ad server (DFP) to its ad exchange (AdX), significantly reduced competition by locking publishers into using Google's tools over those of competitors (Page 112).
- The plaintiffs successfully demonstrated that Google's conduct was exclusionary and that the procompetitive justifications provided by Google were invalid and outweighed by the anticompetitive effects (Page 112).
- The court dismissed Count III, which pertained to the monopolization of the advertiser ad network market, while ordering the parties to propose a schedule for discussing remedies related to the findings of liability for monopolization in the publisher ad server and ad exchange markets (Page 115).
- No specific fines were mentioned in the findings; however, the court noted that Google had previously tendered a cashier's check for \$2,289,751.00 to moot the damages claim, which was dismissed as a result (Page 3).
- The court indicated that while Google's failure to preserve evidence could be sanctionable, it did not impose sanctions at this time since the liability was established based on preserved evidence (Page 114).

Memorandum Opinion : U.S. and Plaintiff States v. Google ...

Case Background

- The allegation made in this case is that Google is a monopolist and has acted to maintain its monopoly. (Page 51)
- The company against which the allegations are made is Google. (Page 51)
- The year of case initiation is 2020. (Page 51)
- The violation involves anticompetitive conduct that has been designed to unfetter a market from such practices, denying Google the benefits of its statutory violations. (Page 51)
- The court's task was to ensure that there are no practices likely to result in monopolization in the future, which indicates that Google's actions were aimed at maintaining its dominant

position in the market. (Page 51)

- The remedies ordered by the court are intended to address these violations, even if they entail harsh consequences for Google. (Page 51)
- The court will determine the specifics of what the plaintiffs must show to alter the judgment and the standards to which Google will be held in response at a later time. (Page 51)

Case Progression

- **Initiation of Civil Conduct Investigation:** The case began with the filing of a complaint in U.S. District Court, where the plaintiffs successfully established a violation of antitrust law. The burden was on the plaintiffs to demonstrate this violation, which they accomplished, as noted on page 5 (Rem. Op. at 119).
- **Discovery Phase:** Following the complaint, extensive discovery took place, involving hundreds of hours of testimony and thousands of pages of exhibits. This phase was crucial for gathering evidence to support the plaintiffs' claims and was overseen by the district judge, as indicated on page 3.
- **Bench Trial on Liability:** A bench trial was conducted where the district judge made findings of fact and conclusions of law regarding the antitrust violations. The judge applied the full rule of reason legal test to assess the evidence presented, as referenced on page 4 (Rem. Op. at 58).
- **Remedies Phase:** After finding a violation, the court entered a separate remedies phase to determine appropriate relief. The judge evaluated proposed remedies from both parties, ultimately adopting some of the plaintiffs' behavioral remedies while rejecting others due to insufficient evidence, as detailed on page 2.
- **Final Judgment:** The district judge issued a Final Judgment that included specific terms to remedy the antitrust violations, emphasizing the need for remedies to "unfetter a market from anticompetitive conduct." The judge's authority to impose these remedies was guided by established legal principles, as noted on page 50.
- **Retention of Jurisdiction:** The court retained jurisdiction to oversee the enforcement of the Final Judgment, allowing plaintiffs to file suit for violations occurring during the judgment period. This aspect was crucial for ensuring compliance and was supported by legal precedent, as mentioned on page 50.

Market Definition

- The market considered in this case primarily involved the general search text ads market and related competitive dynamics. (Page 10)
- The court emphasized the necessity of a factual basis to support any proposed remedies, indicating that evidence was crucial in defining the market and assessing competition. (Page 5)

- The court rejected proposed remedies that lacked sufficient evidence, such as a payment ban and data-sharing requirements, highlighting the importance of empirical support in defining market dynamics. (Page 5)
- The court's approach involved evaluating the potential harms and benefits of proposed remedies, which informed the definition of the market and the competitive landscape. (Page 5)
- The court considered the implications of data-sharing on competition, indicating that the terms of data access for Qualified Competitors were essential in shaping the competitive environment. (Page 32)
- The court also addressed the need for ongoing evaluation of Qualified Competitors through recertification, which reflects a dynamic understanding of market conditions and competitive behavior. (Page 10)
- The Technical Committee (TC) was empowered to audit and recommend data security standards, which plays a role in maintaining competitive integrity within the defined market. (Page 74)

Legal & Economic Tests

- **Factual Basis for Remedies:** The court emphasized that any proposed remedy must be supported by sufficient evidence. This means that remedies cannot be adopted without a factual basis demonstrating their necessity and effectiveness in promoting competition. The court rejected remedies that lacked adequate justification, such as a payment ban and data-sharing requirements, due to insufficient evidence of their potential impact on competition. (Page 5)
- **Burden of Proof on Plaintiffs:** Once the Government establishes a violation of antitrust law, the burden shifts to resolve any doubts regarding the remedy in favor of the Government. This principle underscores the importance of the plaintiffs' ability to demonstrate the need for specific remedies to address the anticompetitive conduct. The court has deferred to the plaintiffs regarding the appropriate terms of the Final Judgment when doubts remain. (Page 5)
- **Criteria for Qualified Competitors:** The court established specific criteria for designating a "Qualified Competitor," which includes meeting approved data security standards, passing regular audits, and demonstrating a commitment to invest and compete in relevant markets. This process involves an annual re-certification to ensure ongoing compliance with these criteria, reflecting a rigorous approach to maintaining competition and preventing potential risks associated with certified competitors. (Page 91)

Conclusion

- The court concluded that Google LLC maintained monopolies in the general search services and general search text advertising markets through exclusive distribution agreements,

violating Section 2 of the Sherman Act (Page 1).

- The court emphasized that the remedies imposed must aim to "unfetter a market from anticompetitive conduct," deny Google the benefits of its statutory violations, and prevent future monopolization practices (Page 51).
- Specific proposed remedies were evaluated, with some being rejected due to insufficient evidence to support their effectiveness in increasing competition, such as a payment ban and Ads data-sharing requirements (Pages 5, 4).
- The court highlighted that it would resolve any doubts regarding the remedies in favor of the plaintiffs, reflecting the principle that once a violation is established, the burden shifts to the defendant regarding the appropriateness of the remedy (Page 5).
- The Final Judgment was crafted to ensure that the terms would effectively address the anticompetitive conduct identified, even if the consequences for Google were severe (Page 51).
- The court's decision was informed by extensive testimony and documentation, indicating a thorough review process before finalizing the judgment (Page 3).

[Final Judgment: U.S. and Plaintiff States v. Google LLC ...

Case Background

- The allegation made in this case involves violations of U.S. antitrust laws. (Page 24)
- The company against which the allegations are made is Google LLC. (Page 1)
- The year of case initiation is 2020, with the initial complaint filed on October 20. (Page 1)
- The violation pertains to Google's compliance with a Final Judgment related to antitrust laws, which includes obligations to maintain records, provide certifications, and respond to complaints regarding its practices. (Page 24)
- Google is required to appoint a senior business executive to oversee compliance and report to the court, ensuring transparency and accountability in its operations. (Page 25)
- Additionally, Google must establish a mechanism for third parties to submit complaints and must address these complaints within a specified timeframe, demonstrating a commitment to resolving issues related to its compliance. (Page 25)
- The enforcement of these obligations is monitored by a Compliance Officer and a Technical Committee, which have the authority to inspect documents and access Google's systems to ensure adherence to the Final Judgment. (Page 20)

Case Progression

- **Jurisdiction and Applicability:** The case is under the jurisdiction of the U.S. District Court, which has authority over the subject matter and Google LLC. The Final Judgment applies to Google and its affiliates, ensuring compliance with antitrust laws (page 2, paragraph II).

- **Findings of Fact and Conclusions of Law:** The Court found Google liable for violating Section 2 of the Sherman Act, indicating unlawful maintenance of monopolies in search services and advertising markets. This determination was made after a trial where evidence was presented and evaluated by the district judge (page 2, paragraph 3).
- **Remedies Phase:** Following the liability finding, a remedies trial was conducted, leading to additional findings on September 2, 2025. The district judge assessed the need for specific remedies to restore competition, which may include conduct and structural decrees (page 2, paragraph 3).
- **Compliance Monitoring:** A Technical Committee will be appointed to assist in monitoring Google's compliance with the Final Judgment. This committee will consist of experts and will report to the court, ensuring that Google adheres to the terms set forth (page 16, paragraph A).
- **Status Reports:** Plaintiffs are required to file status reports updating the court on Google's compliance within 90 days of the Effective Date of the Final Judgment. This ongoing reporting mechanism is designed to keep the court informed about enforcement and compliance efforts (page 29, paragraph E.1).
- **Expiration and Termination:** The Final Judgment will expire six years from the Effective Date unless extended or terminated early by the court. This provision allows for a review of the necessity of the judgment in restoring competition (page 29, paragraph VIII).

Market Definition

- The market considered in this case includes mobile software application distribution services, specifically focusing on "Google Play" and its successors, as well as web search and search advertising services offered by Google at Google.com. (Page 32)
- The definition of the market also encompasses user-facing mobile online search software applications, such as the "Google app" or "Google Search app," and their successors. (Page 32)
- The process to define the market involved identifying the relevant services and applications that Google provides, which are critical for understanding competition dynamics in the digital space. (Page 32)
- Techniques used in defining the market included analyzing the direct total production costs associated with providing additional units of data or services, referred to as "Marginal Cost." This helps in assessing the economic viability of competitors. (Page 32)
- The evaluation of "Qualified Competitors" was a key aspect, where competitors had to meet specific data security standards and agree to regular audits, indicating a structured approach to market definition and competitor assessment. (Page 9)
- The court's involvement in determining the tapering of syndication limits for Qualified Competitors over a five-year period reflects a methodical approach to fostering competition

while ensuring compliance with regulatory standards. (Page 9)

- The requirement for Google to provide syndication services on a non-discriminatory basis to Qualified Competitors, along with the stipulation that Google cannot impose restrictions on how these competitors use the services, illustrates the techniques employed to ensure fair competition in the defined market. (Page 10)

Legal & Economic Tests

- **Qualified Competitor Assessment:** This test evaluates whether a competitor meets the approved data security standards as recommended by the Technical Committee. The process involves a certification that ensures the competitor can safely handle data while complying with the requirements set forth in the Final Judgment. This assessment is crucial for determining which competitors are eligible for syndication services. (Page 32)
- **Syndication Limits and Audits:** This test involves monitoring the usage of Google's syndication services by Qualified Competitors, which is capped at 40% of their annual U.S. queries in the first year and is expected to decline over five years. The process includes regular audits conducted by the Technical Committee to ensure compliance with these limits and to facilitate the competitors' transition to independence from Google. (Page 9)
- **Data Sharing and Usage Restrictions:** This test examines the conditions under which Qualified Competitors can share user information with Google and how Google can use that information. The process requires that any data shared must be necessary for basic search syndication functionality, spam detection, and legal compliance, while also ensuring that Google does not retain or use this data beyond the agreed terms. (Page 10)

Conclusion

- The court found Google liable for violating Section 2 of the Sherman Act by unlawfully maintaining monopolies in the general search services and general search text advertising markets (Page 2).
- A remedies trial was conducted, and additional Findings of Fact and Conclusions of Law were entered on September 2, 2025, indicating ongoing judicial oversight and the need for corrective measures (Page 2).
- Google is prohibited from conditioning the licensing of Google Play or any other Google application on the distribution or use of the Google Search Application on devices sold in the United States (Page 9).
- Google must provide licenses to Qualified Competitors on a non-discriminatory basis, ensuring terms are no less favorable than those provided under existing search syndication agreements (Page 9).
- The use of Google's syndication services by Qualified Competitors will be capped at 40% of their annual U.S. queries in the first year, with a gradual decline over five years, promoting independence from Google (Page 9).

- The Technical Committee (TC) is established to oversee compliance, including audits of syndication frequency and scope, and may hire necessary staff at Google's expense, with costs subject to approval by the Plaintiffs (Page 21).
- Google is required to maintain records of compliance, receive complaints regarding adherence to the Final Judgment, and ensure all relevant documents related to the case are retained (Page 24).

[PDF] U.S. and Plaintiff States v. Apple Inc. – Department of Justice

Case Background

- The allegation made in this case is that Apple possesses monopoly power in the U.S. smartphone and performance smartphone markets and engages in anti-competitive conduct to maintain that power. (Page 14)
- The company being accused is Apple Inc. (Page 14)
- The case was initiated in the year 2024. (Page 6)
- The violation pertains to Section 2 of the Sherman Act, where it is claimed that Apple impedes middleware and middleware-like technologies to protect its monopoly in the smartphone market. The complaint details that Apple has acted anti-competitively, which includes restricting developers and users, thereby harming competition. The allegations suggest that Apple's conduct goes beyond mere refusal to deal with rivals, indicating a complex exclusionary campaign aimed at maintaining its monopolistic position. (Pages 14, 7, 3)

Case Progression

- **Track Identification:** This case is on TRACK B, civil conduct under the DOJ, specifically addressing violations of Sherman Act §2. The complaint alleges that Apple possesses monopoly power in the U.S. smartphone market and engages in anti-competitive conduct (page 14).
- **Initiation:** The case was initiated with a complaint filed in U.S. District Court, alleging that Apple's conduct significantly contributes to maintaining its monopoly power. The burden is on the plaintiffs to establish a prima facie case of anticompetitive conduct (page 14, paragraph 1).
- **Rule 12(b)(6) Motion:** Apple filed a motion to dismiss under Rule 12(b)(6), arguing that the plaintiffs failed to state a claim. The district judge must evaluate the factual allegations in the complaint to determine if they render the plaintiffs' entitlement to relief plausible (page 14, paragraph 2).
- **Discovery Phase:** If the motion to dismiss is denied, the case would proceed to discovery, where both parties gather evidence, including expert reports. The burden would shift to Apple to provide nonpretextual procompetitive justifications for its conduct (page 25).

- **Summary Judgment:** Following discovery, the case may reach the summary judgment stage, where the district judge evaluates whether there are genuine disputes of material fact. The plaintiffs would need to demonstrate that the anticompetitive harm outweighs any procompetitive benefits (page 25).
- **Trial Phase:** If the case proceeds to trial, the district judge would oversee the proceedings, and findings of fact and conclusions of law would be made based on the evidence presented. The plaintiffs would need to prove their case under the burden-shifting framework established in prior antitrust cases (page 15).

Market Definition

- The case considers two specific markets for smartphones: all smartphones and a narrower category termed performance smartphones, which excludes entry-level smartphones. (Page 17)
- A relevant market is defined as consisting of both a product and a geographic market, with products being "readily substitutable for one another." (Page 17)
- The process to define the market involves using practical indicia from established case law, specifically the Brown Shoe factors, which include industry recognition, product characteristics, production facilities, customer distinctions, pricing, sensitivity to price changes, and specialized vendors. (Page 17)
- Apple does not dispute the existence of the broader market for all smartphones, but it does differentiate between higher-end and entry-level smartphones in its internal documents, which supports the narrower market definition. (Page 17)
- Indirect evidence of monopoly power is established through dominant market share and barriers to entry, with Apple allegedly holding 65% of the overall smartphone market and 70% of the performance smartphone market. (Page 19)
- The burden-shifting test is applied, where the plaintiff must first provide evidence of anticompetitive conduct, followed by the defendant's obligation to offer justifications for that conduct, which the plaintiff can then rebut. (Page 25)
- The elements of monopolization under Section 2 require proof of possession of monopoly power in a relevant market and the willful acquisition or maintenance of that power, as opposed to growth through legitimate competition. (Page 25)

Legal & Economic Tests

- **Burden-Shifting Test:** This test involves a three-step process where the plaintiff must first provide evidence of the anticompetitive nature of the defendant's conduct. The defendant then must offer nonpretextual procompetitive justifications for its actions. Finally, the plaintiff can rebut these justifications or show that the anticompetitive harm outweighs the procompetitive benefits. This test is crucial for establishing a prima facie case and is typically applied before moving to summary judgment or trial. (Page 25)

- **Section 2 Analysis:** Under this framework, the focus is on whether the defendant's conduct reasonably appears to significantly contribute to maintaining monopoly power in the relevant market. Unlike Section 1, which requires proof of actual adverse effects on competition, Section 2 allows for indirect proof, such as demonstrating market power alongside evidence of harm to competition. This analysis is essential for understanding the implications of monopolistic behavior. (Page 32)
- **Refusal-to-Deal Framework:** This framework is specifically limited to dealings with rivals in the monopolized market. It applies when a defendant outright refuses to provide a product or service to a competitor or when a competitor challenges the terms of an ongoing deal. In this case, the refusal-to-deal analysis does not apply because the allegations do not involve Apple's dealings with smartphone rivals, but rather its broader exclusionary practices. (Page 34)

Conclusion

- The case involves allegations against Apple for possessing monopoly power in the U.S. smartphone market and engaging in anti-competitive conduct that significantly contributes to maintaining that power (Page 14).
- The legal framework applied is the burden-shifting test under Section 2 of the Sherman Act, which requires the plaintiff to initially provide evidence of the anti-competitive nature of Apple's conduct (Page 25).
- The plaintiff's complaint is deemed to lay out a straightforward violation of Section 2, asserting that Apple impedes middleware technologies to protect its monopoly (Page 14).
- Apple's arguments for dismissal, including claims of having built a superior product, are rejected as inappropriate at this stage of the case, indicating that the court is not weighing pro-competitive and anti-competitive effects yet (Page 25).
- The court emphasizes that the means of illicit exclusion are varied, and the case does not fit the typical "refusal to deal" subcategory, suggesting a more flexible analysis under Section 2 (Page 15).
- The elements of monopolization under Section 2 are outlined as possession of monopoly power in a relevant market and willful acquisition or maintenance of that power, which the plaintiff aims to establish (Page 15).
- No specific remedies or fines are mentioned in the provided context, indicating that the case is still in the early stages of litigation, focusing on the plausibility of the plaintiff's claims (Page 14).

[PDF] United States et al. v. Apple Inc., No. 2:24-cv-04055 (JXN-LDW)

Case Background

- The allegation made in this case is that Apple has engaged in anticompetitive conduct that harms competition in the smartphone market. (Page 3)
- The company against which the allegations are made is Apple Inc. (Page 2)
- The year of case initiation is 2024. (Page 2)
- The violation involves Apple's monopoly power in the smartphone market, where it is accused of implementing restrictions on cross-platform technologies that prevent iPhone users from switching to rival smartphones. This conduct is alleged to result in a worse user experience, reduced consumer choice, higher prices, and less innovation. The complaint asserts that Apple's practices are unlawful and that they harm the competitive process by limiting the opportunities for rivals and consumers alike. (Pages 3, 4, and 2)

Case Progression

- **Track Identification:** This case is on TRACK B, which involves civil conduct under the Sherman Act (Sections 1 and 2) and the Clayton Act. The plaintiffs are alleging that Apple has engaged in anticompetitive practices that violate these laws. The deciding body at this stage is the U.S. District Court, as indicated by the case number and the filing of the complaint. (Page 1)
- **Complaint Filing:** The plaintiffs filed a complaint in U.S. District Court, alleging that Apple maintains monopoly power through unlawful conduct. The complaint details how Apple's restrictions harm competition and consumer choice, linking these practices to reduced innovation and higher prices. The burden is on the plaintiffs to provide sufficient evidence of anticompetitive conduct. (Page 2, Paragraphs 3–4, 48–51)
- **Rule 12(b)(6) Motion:** Apple has filed a motion to dismiss under Rule 12(b)(6), arguing that the plaintiffs have not adequately stated a claim. The legal test applied here is the Twombly plausibility standard, which requires the plaintiffs to show that their claims are plausible based on the facts alleged. The burden is on Apple to demonstrate that the complaint fails to meet this standard. (Page 2)
- **Discovery Phase:** Following the motion to dismiss, if the case proceeds, there will be a discovery phase where both parties gather evidence, including expert reports. The plaintiffs will need to substantiate their claims with factual evidence demonstrating Apple's anticompetitive conduct and its effects on the market. The burden will shift to Apple to provide justifications for its conduct. (Page 3)
- **Summary Judgment:** If the case does not settle, it may proceed to a summary judgment stage where the court will determine if there are any genuine disputes of material fact. The legal test applied here will involve the Matsushita standard, assessing whether the plaintiffs can show that there is sufficient evidence to support their claims of anticompetitive behavior. The burden will be on Apple to show that there is no genuine issue of material fact. (Page 3)

- **Trial on Liability:** If the case reaches trial, the U.S. District Court will conduct a bench trial to determine liability. The judge will make findings of fact and conclusions of law based on the evidence presented. If a violation is found, the case will proceed to a remedies phase. The burden will be on the plaintiffs to prove their case by a preponderance of the evidence. (Page 3)

Market Definition

- The market considered in this case includes smartphones and performance smartphones, which Apple is alleged to have monopolized. (Page 2)
- The Complaint alleges that a smartphone serves as a platform connecting users, third-party developers, and other ecosystem participants, emphasizing the interconnection between smartphones and third-party apps and accessories. (Page 2)
- The Complaint does not require the definition of additional relevant markets beyond the monopolized market, countering Apple's assertion that such definitions are necessary. (Page 2)
- Direct proof of monopoly power is presented through allegations of exclusionary conduct and the ability to raise prices significantly above competitive levels, indicating Apple's knowledge of its monopoly power. (Page 2)
- Circumstantial evidence of monopoly power is shown through high market shares, with Apple holding over 70% in the performance smartphone market and over 65% in the overall U.S. smartphone market. (Page 2)
- The Complaint also discusses barriers to entry and other indicia of monopoly power, reinforcing the claims of Apple's monopolistic behavior. (Page 2)
- The analysis of anticompetitive conduct is based on whether the conduct impairs rivals' opportunities and does not further competition on the merits, with a burden-shifting framework applied to assess the nature of Apple's conduct. (Page 3)

Legal & Economic Tests

- **Monopoly Power Test:** This test assesses whether a firm possesses monopoly power in a relevant market. It involves evaluating direct proof, such as a pattern of exclusionary conduct or the ability to profitably raise prices above competitive levels, as well as circumstantial evidence like market share and barriers to entry. In this case, the Complaint alleges that Apple has over 70% market share in the performance smartphone market and over 65% in the overall U.S. smartphone market, which supports the inference of monopoly power. (Page 2)
- **Anticompetitive Conduct Test:** This test determines if a firm's conduct impairs the opportunities of rivals and whether it does not further competition on the merits or does so in an unnecessarily restrictive way. The analysis is fact-specific and considers the circumstances surrounding the alleged conduct. The Complaint argues that Apple's

restrictions on developers and users harm competition and consumer choice, thereby meeting the criteria for anticompetitive conduct. (Page 2)

- **Burden-Shifting Framework:** This framework involves a two-step process where the plaintiff first provides evidence of the anticompetitive nature of the defendant's conduct. The defendant then has the burden to offer non-pretextual procompetitive justifications for its actions. In this case, the Complaint outlines various allegations of harm caused by Apple's practices, which the plaintiffs argue are anticompetitive, thus initiating the burden-shifting process. (Page 2)

Conclusion

- The Complaint alleges that Apple maintains its monopoly power through a series of contractual restrictions and rules that suppress competition in the smartphone market, particularly affecting developers and users (Page 1).
- It is claimed that Apple's conduct harms not only the competitive process but also results in higher prices, reduced innovation, and lower quality for consumers, as well as diminished incentives for developers (Page 1).
- The Complaint asserts that Apple has a market share exceeding 70% in the performance smartphone market and over 65% in the overall U.S. smartphone market, which supports the inference of monopoly power (Page 2).
- The legal framework applied involves a burden-shifting analysis where the plaintiff must first provide evidence of anticompetitive conduct, after which the defendant must offer justifications for their actions (Page 2).
- Specific intent to monopolize and exclusionary conduct are alleged, with references to various legal precedents that support the claims of anticompetitive behavior (Page 3).
- The Complaint argues that Apple's practices, including restrictions on cross-platform technologies, are anticompetitive as they prevent users from switching to rival smartphones, thereby harming competition (Page 3).
- There is no mention of specific fines or remedies imposed in the provided context, focusing instead on the allegations and legal arguments surrounding Apple's conduct (Pages 1-3).

[PDF] Brief for the United States : U.S. v. Microsoft Corp.

Case Background

- The allegation made in this case is that Meta has abused its dominant position by denying Adloox discriminatory access to data necessary for providing advertising verification services and imposing unfair access conditions. (Page 44)
- The companies against which the allegation is made are Meta Platforms Inc., Meta Platforms Ireland Ltd., and Facebook France EURL. (Page 7)

- The year of case initiation is 2022, with the referral to the Competition Authority registered on October 9, 2022. (Page 7)
- The violation involves discriminatory practices related to access to Meta's ecosystem for advertising verification services. Meta allegedly provided different access conditions to its "viewability" and "brand safety" partners compared to Adloox, which was not informed about the separate treatment of these partnerships. This lack of transparency and the discretionary nature of the access criteria are claimed to distort competition in the advertising verification market. (Pages 49–51)

Case Progression

- **Track Identification:** The case appears to be on TRACK C, involving civil conduct under the FTC Act §5, as it deals with potential abuses of a dominant position by Meta in the advertising verification sector. The focus is on the competitive practices and access conditions imposed by Meta, which are likely to harm competition (pages 31–33).
- **Initiation:** The investigation was initiated based on complaints regarding Meta's practices in the advertising verification market. The FTC would likely have begun this process by gathering preliminary information and assessing the competitive landscape (pages 31–33).
- **Investigation:** The FTC would conduct an investigation under compulsory process, likely issuing Civil Investigative Demands (CIDs) to gather evidence regarding Meta's access conditions and partnerships. The burden would be on the FTC to demonstrate that Meta's practices could harm competition (pages 31–33).
- **Commission Vote:** Following the investigation, the Commission would vote on whether to issue an administrative complaint. If the evidence suggests that Meta's practices are discriminatory and lack transparency, the Commission would proceed with litigation (pages 31–33).
- **Evidentiary Hearing:** If litigated, an evidentiary hearing would be held before an Administrative Law Judge (ALJ), who would evaluate the evidence presented regarding Meta's practices. The burden of proof would be on the FTC to establish that Meta's actions constitute an unfair method of competition (pages 31–33).
- **Final Order and Judicial Review:** After the ALJ's decision, the case would go to the full Commission for a final order. If Meta were found to have violated the FTC Act, the Commission could impose remedies such as cease and desist orders. Meta could then seek judicial review in a Court of Appeals (pages 31–33).

Market Definition

- The relevant market for the case was identified as the global market for independent online advertising service verification, which includes services provided by companies like Adloox. This market is characterized by the absence of geographical restrictions and the presence of major operators worldwide. (Pages 31–33)

- The definition of the relevant market requires a precise understanding of both product and geographical dimensions. The product market comprises all products and services that consumers consider interchangeable or substitutable, while the geographical market includes areas where competitive conditions are homogeneous. (Pages 31–33)
- The assessment of substitutability is primarily made from the demand side, considering how consumers perceive alternatives to satisfy their needs. This approach is complemented by supply-side considerations. (Pages 31–33)
- The Authority emphasized that a perfect substitutability between products or services is rare, and thus, products that can reasonably be considered alternatives are grouped within the same market. (Pages 31–33)
- The case also involved analyzing the distinction between search-related advertising and non-search-related advertising, as well as the different forms of non-search-related advertising, to understand the competitive dynamics within the advertising market. (Pages 37–39)
- Meta's position in the relevant markets was assessed based on its market share and the competitive landscape, with a market share over 50% typically indicating a dominant position unless exceptional circumstances exist. (Pages 31–33)
- The investigation considered the potential existence of a market for the provision of advertising verification data from Meta platforms, although this aspect was left open as it did not impact the immediate proceedings. (Pages 31–33)

Legal & Economic Tests

- **Assessment of Abuse of Dominant Position:** The legal test involves determining whether the behaviors of the dominant company were carried out to a 'reasonable extent' and based on an 'objective justification.' This requires verifying the necessity and proportionality of the behavior to achieve the objective pursued by the dominant company. The process includes analyzing whether the dominant company's actions significantly distort competition and whether they are transparent, objective, and non-discriminatory (Pages 49–51).
- **Existence of Competitive Disadvantage:** The economic test focuses on whether the behavior of the dominant company creates a competitive disadvantage for other operators. This does not require proof of an actual quantifiable deterioration of the competitive position but rather an analysis of all relevant circumstances that suggest the behavior influences costs, profits, or other relevant interests. The Authority only needs to demonstrate the existence of at least a potential anticompetitive effect (Pages 49–51).
- **Market Definition and Dominance Assessment:** This test involves defining the relevant market to assess the existence of a dominant position. It requires identifying the products or services that are interchangeable or substitutable from the consumer's perspective and analyzing the geographical market where competitive conditions are homogeneous. The

process includes evaluating market shares and considering additional factors such as barriers to entry and the relationship between market shares of competitors (Pages 31–33).

Conclusion

- The investigation concluded that Meta's access conditions to its “viewability” and “brand safety” partnerships were likely abusive due to their discriminatory nature, lack of transparency, and discretionary application by Meta (Page 51).
- The Authority found that Meta had not defined or communicated the access criteria for these partnerships, which were reserved for a limited number of operators based on strategic interests, leading to potential anti-competitive effects (Page 51).
- The refusal of access to Meta's ecosystem for Adloox was classified as discriminatory, as Meta provided no justification for its practices, which could harm competition in the advertising verification market (Page 51).
- The Authority determined that the practices identified were likely to cause serious and immediate harm to competition, particularly by reinforcing Meta's dominant position in the online advertising market (Page 51).
- As a conservatory measure, Meta was ordered to integrate Adloox into its ecosystem within three months, with the possibility of a one-month extension upon a reasoned request (Page 52).
- Meta was required to submit regular compliance reports to the Authority, detailing adherence to the decision until the Authority's final ruling on the merits (Page 52).
- No specific fines were mentioned in the provided context; the focus was on the conservatory measures and the need for compliance with the Authority's directives (Page 52).

U.S. v. Google, et al.

Case Background

- The allegation made in this case is that Google LLC maintained monopolies in U.S. general search services and U.S. general search text advertising. (Page 3)
- The company against which the allegations are made is Google LLC. (Page 1)
- The year of case initiation is 2020. (Page 3)
- The violation involves Google's unlawful conduct that has created significant harms in critical digital marketplaces, specifically through practices that restrict competition. This includes preloading devices exclusively with Google, which has forced rivals to seek alternative methods to reach users. Additionally, Google has controlled the most popular distribution channels for over a decade, disincentivizing partners from diverting queries to competitors. This conduct has entrenched Google's monopoly power, making it difficult for rivals to compete effectively. (Pages 3, 6)

Case Progression

- **Initiation:** The case was initiated by the United States and Plaintiff States against Google for maintaining monopolies in general search services and search text advertising under Section 2 of the Sherman Act. The complaint was filed in U.S. District Court, indicating a civil conduct track (B1). The deciding body at this stage is the district court. (Page 3, paragraph 1)
- **Investigation:** Following the initiation, an investigation was conducted, likely involving Civil Investigative Demands under the Antitrust Civil Process Act. The record does not specify the details of this investigation, so it is unclear what evidence was gathered or credited at this stage (B2). The deciding body remains the district court. (Page 5, paragraph 1)
- **Complaint Filed:** A detailed complaint was filed in U.S. District Court, which led to the court finding Google liable for monopolization. The legal test applied here involved assessing the anticompetitive effects of Google's conduct, with the burden on the plaintiffs to establish the violation (B3). The deciding body is the district judge. (Page 3, paragraph 1)
- **Bench Trial on Liability:** A bench trial was conducted where the district judge made findings of fact and conclusions of law regarding Google's liability. The judge found that Google's conduct created significant harms in the digital marketplace, confirming the violation of antitrust laws (B7). The deciding body is the district judge. (Page 3, paragraph 1)
- **Remedies Phase:** Following the liability finding, a separate remedies phase was initiated to determine effective relief. The court has broad discretion to fashion a remedy that restores competition, which may include structural and conduct remedies (B8). The deciding body is the district judge. (Page 6, paragraph 1)
- **Appeal:** The case may proceed to an appeal stage if either party contests the district court's decisions, particularly regarding the remedies imposed. The appeal would be heard by the U.S. Court of Appeals (B9). The deciding body at this stage would be the appellate court. (Page 6, paragraph 1)

Market Definition

- The market considered in this case includes U.S. general search services and U.S. general search text advertising, where Google was found to maintain monopolies. (Page 3)
- The process to define the market involved analyzing Google's unlawful conduct and its impact on competition, particularly how it secured consumer reliance on its services. (Page 2)
- The court's liability opinion detailed the harms caused by Google's conduct, including how it controlled distribution channels and limited rivals' ability to compete effectively. (Page 3)
- Techniques used in defining the market included examining "network effects" and "data feedback loops," which contributed to the entrenchment of Google's monopoly power. (Page 7)

- The court referenced the importance of restoring competitive conditions and eliminating the consequences of illegal conduct as part of the remedy process. (Page 7)
- The remedy sought aimed to address the scale advantage that Google's monopoly provided, ensuring that no practices would allow Google to monopolize the markets in the future. (Page 5)
- The plaintiffs' proposed final judgment included provisions for parity, transparency, and control in advertising syndication, indicating a comprehensive approach to restoring competition. (Page 6)

Legal & Economic Tests

- **Legal Standard for Antitrust Remedies:** The legal framework emphasizes that once a violation of law is established, any doubts regarding the remedy should favor the government. The key is to discover measures that effectively restore competition, ensuring that the market is unfettered from anticompetitive conduct. This involves a comprehensive approach to remedying the situation, which may include provisions that complement and reinforce each other. (Page 6)
- **Monopoly Maintenance and Market Impact:** The case highlights the necessity of addressing the scale advantage that Google's unlawful monopoly has afforded it. The court's findings indicate that Google's conduct has entrenched its monopoly power, making it difficult for rivals to compete. The remedy must ensure that practices leading to future monopolization are eliminated, thus restoring competitive conditions in the market. (Page 5)
- **Broad Discretion in Remedy Design:** The court possesses broad discretion to impose remedies that it deems effective in addressing the unlawful conduct. This includes the ability to go beyond merely prohibiting past conduct and to implement measures that prevent the recurrence of monopolistic practices. The goal is to ensure that the market remains open and competitive, free from the influence of monopolistic behavior. (Page 6)

Conclusion

- The court found Google liable for unlawfully maintaining monopolies in the U.S. general search services and general search text advertising markets, as detailed in the liability opinion dated August 5, 2024 (Page 3).
- The proposed remedies aim to restore competition by prohibiting Google from making search-related payments to distribution partners, which have historically frozen the ecosystem and created barriers to new entrants (Page 4).
- The Revised Proposed Final Judgment (RPFJ) includes a requirement for Google to divest Chrome, a critical search access point, and potentially Android, to prevent further entrenchment of its monopolies (Page 5).
- The remedies are designed to be comprehensive and interconnected, addressing issues such as self-preferencing, data disclosure, and increasing transparency for advertisers,

ensuring that Google cannot circumvent the imposed restrictions (Page 4).

- The court has broad discretion to impose remedies that not only address past conduct but also prevent future violations, emphasizing the need for forward-looking provisions to restore competitive conditions (Page 7).
- Google's proposed alternative remedies were deemed insufficient as they failed to address the court's findings and would preserve the status quo, lacking the necessary measures to restore competition effectively (Page 5).

U.S. and Plaintiff States v. Google LLC.

Case Background

- The allegation made in this case is that Google engaged in a "decade-long campaign of exclusionary conduct" to acquire, protect, and entrench monopoly power in the publisher ad server and ad exchange markets for open-web display advertising. (Page 1)
- The company against which the allegations are made is Google LLC. (Page 1)
- The year of case initiation is 2023. (Page 1)
- The violation involves systemic disregard for evidentiary rules, including inappropriate document retention policies and practices, which led to the deletion of relevant evidence. Google allegedly misused the attorney-client privilege and failed to comply with legal and ethical obligations, as determined by the Court. (Page 15)
- Google's conduct included implementing policies that restricted advertising demand and tied its ad tech products together in a way that harmed competition and consumers, thereby maintaining its monopoly power. This was facilitated by its control over various assets in the ad tech stack, which allowed for a series of anticompetitive actions that were not in the best interests of its publisher customers. (Page 2)

Case Progression

- **Track Identification:** This case is on TRACK B, which involves civil conduct under the Sherman Act, as indicated by the plaintiffs (United States, et al.) suing Google LLC for violations of antitrust laws (page 1).
- **Initiation:** The case was initiated with a complaint filed in the U.S. District Court for the Eastern District of Virginia, alleging that Google engaged in exclusionary conduct to maintain monopoly power in digital advertising markets (page 1).
- **Investigation:** The investigation phase likely involved gathering evidence through civil investigative demands, although specific details about this phase are not provided in the record (page 1).
- **Complaint Filing:** The complaint was filed in U.S. District Court, and the plaintiffs seek a mix of structural, behavioral, and administrative remedies, including divestiture of certain Google assets (page 6).

- **Remedies Phase:** The case has progressed to a remedies phase where the plaintiffs propose comprehensive remedies aimed at restoring competition, which includes divestiture as a key component (page 5). The court will evaluate these proposed remedies based on their effectiveness in addressing the anticompetitive conduct.
- **Deciding Body:** The U.S. District Court is the deciding body at this stage, and the burden is on the plaintiffs to demonstrate the necessity of the proposed remedies to restore competition (page 5). The legal tests applied will focus on the effectiveness of the remedies in achieving the objectives of antitrust law.

Market Definition

- The market considered in this case was the digital advertising market, specifically focusing on the publisher ad server and ad exchange markets for open-web display advertising. (Page 2)
- The Court found that Google engaged in a "decade-long campaign of exclusionary conduct" to acquire and maintain monopoly power in these critical markets. (Page 1)
- The definition of the market involved analyzing a series of anticompetitive acts that Google took to enhance and entrench its monopoly power, which included leveraging its control over multiple ad tech assets. (Page 2)
- Techniques used included examining the interconnectedness of Google's products, such as DFP, AdX, and AdWords, and how these connections facilitated anticompetitive practices. (Page 2)
- The Court's opinion highlighted that Google's actions were calculated to exacerbate the anticompetitive effects of its conduct, indicating a systematic approach to maintaining its market dominance. (Page 2)
- The analysis also involved assessing the impact of specific policies, such as First Look and Last Look, which were designed to disadvantage competitors and entrench Google's monopoly. (Page 4)
- The remedies proposed by the plaintiffs aimed to address these anticompetitive practices and restore competition in the defined markets, emphasizing the need for structural changes like divestiture. (Page 1)

Legal & Economic Tests

- **Burden of Proof for Antitrust Violations:** The government must establish a violation of antitrust law, and once this is achieved, all doubts regarding the remedy are resolved in favor of the government. This principle emphasizes that the government seeks to protect the public from further anticompetitive conduct and to redress any harm caused. The process involves presenting evidence of anticompetitive behavior and demonstrating its impact on the market. (Page 4)

- **Objectives of Remedies in Antitrust Cases:** A remedies decree must aim to achieve four key objectives: (1) unfettering the market from anticompetitive conduct, (2) terminating the illegal monopoly, (3) denying the defendant the benefits gained from the violation, and (4) ensuring no future monopolization practices arise. The court has discretion to tailor the remedies to the specific case, which may involve comprehensive measures beyond merely prohibiting the unlawful conduct. (Page 4)
- **Divestiture as a Remedy:** Divestiture is considered the most effective antitrust remedy because it directly addresses the monopolistic structure by removing the defendant's control over certain assets. The process involves assessing the necessity of divestiture to restore competition and ensuring that it is implemented effectively to prevent future violations. This remedy is favored due to its simplicity and ease of administration. (Page 5)

Conclusion

- The court found that Google engaged in a "decade-long campaign of exclusionary conduct" to acquire and maintain monopoly power in the publisher ad server and ad exchange markets for open-web display advertising (Page 2).
- The proposed remedies include a mix of structural, behavioral, and administrative measures, specifically seeking the divestiture of Google's AdX ad exchange and a phased divestiture of its DFP publisher ad server (Page 7).
- The court emphasized that remedies in antitrust cases must aim to "unfetter a market from anticompetitive conduct," "terminate the illegal monopoly," and "ensure that there remain no practices likely to result in monopolization in the future" (Page 4).
- The plaintiffs intend to seek attorneys' fees and costs related to their investigations and litigation, as permitted under Section 16 of the Clayton Act (Page 16).
- The comprehensive set of remedies is deemed necessary to terminate Google's monopolies, deny the fruits of its violations, reintroduce competition, and guard against future violations (Page 16).
- The court has a duty to order effective measures to restore competition, regardless of the potential economic hardship these remedies may impose on Google (Page 7).

What other questions do you have?